



KIOWA TRIBE

P.O. Box 369 · Carnegie, Oklahoma · 73015
Phone: (580) 654-6338 · Fax: (580) 654-1788
OFFICE OF THE LEGISLATURE

RESOLUTION NUMBER KL-CY-2025-029

THE EXECUTIVE SUCCESSION AND SIGNATURE AUTHORITY ACT OF 2025

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and,

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and,

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and,

WHEREAS, same Constitution establishes the structure of the Kiowa Government, including separation of specific powers among four lateral branches as well as the subordination in the Executive Branch of the Office of the Vice-Chairman, the occupant of which serves at the pleasure of the Chairman of the Tribe; and, ,

WHEREAS, the Constitution, in Article XII, Section 9 provides: “Any vacancy in the Office of Vice-Chairman shall be filled by appointment by the Chairman”; and,

WHEREAS, the Kiowa Constitution is silent regarding a line of Executive Branch succession beyond the assumption of the Office of Chairman by a Vice-Chairman; and,

WHEREAS, the Office of the Vice-Chairman remained vacant for approximately half of one year in 2024 and 2025; and,

WHEREAS, prolonged vacancies in the Office of Vice-Chairman introduce the risk of chaos and operational disarray into the Tribe government; and,

WHEREAS, the premise that either the authors of or the voters who approved the Constitution intended to court the peril of Tribe operations plunging into dysfunction in the

event of concurrent vacancies in the Offices of Chairman and Vice-Chairman defies credulity; and,

WHEREAS, on multiple occasions, the Chairman has granted in his absence from the seat of Kiowa government undefined “signature authority” to appointed officials who are not Members of the Tribe; and

WHEREAS, the Legislature is vested with the authority to pass laws and resolutions pursuant to Article VI, Section 6(a) of the Constitution of the Kiowa Tribe; and,

WHEREAS, the Legislature has determined that statutory codification of a line of succession as well as protocols for the assignment of “signature authority” by the Chairman are necessary in the interests of bolstering protection against the possibility of operational crises;

NOW THEREFORE BE IT RESOLVED that the Legislature hereby enacts “The Executive Succession and Signature Authority Act of 2025.”

C E R T I F I C A T I O N

The foregoing Resolution KL-CY-2025-029 was duly voted upon by the Legislature on December 13, 2025, at a Legislative Regular Session CIV-(104), with a vote of (4) in favor and (0) opposed, (0) abstaining, and (3) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.



Michael Primus
Speaker of the Legislature



LEGISLATIVE RESOLUTION – KL-CY-2025-029

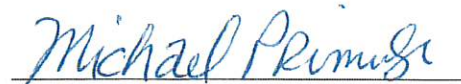
Sponsors: Cole DeLaune, District 4

Co-Sponsors:

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héñgyádàu
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3				X
Cole DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6	X			
Warren Queton District 7				X Out of District

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2025-029 was presented to the Chairman of the Kiowa Tribe on the 19th day of December, 2025, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.



Michael Primus
Speaker of the Legislature

CHAIRMAN'S ACTION:

☐ APPROVED

☒ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

See Attached

On this 29th day of December, 2025.


Lawrence Spottedbird
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2025.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2025-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Primus District 2				
Timothy Satepauhoodle District 3				
Cole DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

CERTIFICATION

The foregoing Legislative Order, KLO-CY-2025-00X was duly voted upon by the Legislature on _____, 2025, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Section 1.1

This enactment shall be cited as “The Executive Succession and Signature Authority Act of 2025.”

Section 1.2

This enactment shall provide for the performance of the duties of the office of Chairman of the Tribe in the event of removal, resignation, death, or other inability of both the Chairman and Vice Chairman.

Section 1.3

To the extent there is a conflict, this Act supersedes and replaces all prior and existing policies, regulations, or rules whether written, verbal, official, or informal.

Section 1.4

If for any reason concurrent vacancies occur in the Offices of Chairman and Vice Chairman, and:

- (a) More than six months remain in the term, the Election Commission shall conduct a Special Election to fill the vacancies within forty-five days.
- (b) Less than six months remain in the term, then a qualified official of the Executive Branch consistent with the succession provided in this law shall serve as Acting Chairman until the conclusion of the term.

Section 1.5

In the event that a Special Election is conducted by the Election Commission consistent with provisions of this enactment, then the candidates for Chairman and Vice-Chairman with the highest share of the vote shall be sworn into office by a Justice of the Kiowa Supreme Court upon the certification of Election results by the Commission upon the conclusion of the 48 hours provided for protests and challenges of results to the Commission.

Section 1.6

(a) If by reason of death, resignation, removal from office, inability, or failure to qualify, there is neither a Chairman nor a Vice Chairman to discharge the powers and duties of the office of Chairman of the Tribe, then the officer of the Tribe who (a) is highest on the following list and (b) who is an enrolled Member of the Tribe and (c) who is not under disability to discharge the powers and duties of the office of Chairman shall act as Chairman until such a time as a Chairman is elected:

- i. Executive Director of Tribal Operations
- ii. Executive Director of the Kiowa Education Agency
- iii. Executive Director of Housing and Community Development
- iv. Executive Director of Health and Human Services

(b) The person serving as Acting Chairman shall be given the oath of office and shall faithfully perform the duties of the office until a Chairman is elected, at which time they shall vacate the office.

(c) The person acting as Chairman or as Vice Chairman shall receive the pay of the office in which they are acting, effective on the date of their oath.

(d) If assuming a position as set out herein would interfere with important duties of the Tribe, or if there are personal or other reasons, then any person in line of succession to assume the duties of Acting Chairman or Acting Chairman may decline and the next person in succession shall be appointed and shall take the oath of office.

Section 1.7

Assumption of the powers and duties of the Chairman of the Tribe by an individual serving as Acting Chairman consistent with the provisions of this law shall not be held to constitute resignation from the office by virtue of the holding of which they qualify to act as Chairman. Any officer serving as Acting Chairman consistent with the provisions of this enactment shall delegate the powers and duties of their office to a subordinate of their choice within their respective Division until such a time as their service as Acting Chairman concludes. Any designee to whom same powers and duties are delegated shall receive the pay of the office in which they are acting.

Section 1.8

If for any reason the Chairman of the Tribe seeks to delegate signature authority in the course of their term of office, the Chairman shall transmit written notice to the Legislature and such authority shall be vested in the officer of the Tribe who (a) is highest on the following list and (b) who is an enrolled Member of the Tribe and (c) who is not under disability to discharge such authority:

- i. Vice Chairman
- ii. Treasurer
- iii. Executive Director of Tribal Operations
- iv. Executive Director of the Kiowa Education Agency
- v. Executive Director of Housing and Community Development
- vi. Executive Director of Health and Human Services

Such authority shall encompass only enforcement of court orders and procedural approval of requisitions, expenses, and procurements internal to the Tribe and consistent with the Annual Budget. No delegation of signature authority shall be construed to constitute power to sign legislation into law or to veto enactments; to negotiate or sign treaties, contracts, compacts, or gaming management contracts; to issue nominations for appointments; or to represent the Tribe in negotiations with other governments.

Section 1.9

This Act is effective upon signature of the Chairman of the Kiowa Tribe or upon signature of the Speaker of the Kiowa Legislature following legislative override.

EXPLANATION OF VETO

KI-CY-2025-029 – Signature Authority

The resolution designate a list of signature authority from whom Chairman may designate in his absence, while may be appropriate as an approved menu of delegates from whom Chairman may select for his short term or long term absence, the language of the resolution contains false statements, false facts and false panic over matters that have not and would not happen in the operation of the Executive branch of government. Words like “peril” , ‘risk of chaos” and “court the peril”, are over-dramatic statements intended to inflame and create a false sense of the state of such a minor incident of designated signature authority.

In most historical instances, there are no issues so important that they cannot be postponed until return of the Chairman. Most certainly, the Vice-Chairman needs to “siderails” to management his function as second in command of the Tribe in Chairman’s absence, nor should the four department heads, all whom are confirmed by the Legislature, eventually even though that has not been a recent occurrence, or habit of the Legislature to timely approve Chairman’s nominees for such.

The Chairman can approve any person on a pre-approved list he so designates. The list is fine. However, the resolution language is another example of an unsupported “hit job” with no historical example of breach by the Executive branch of abuse of any signature authority, even after exhaustive public hearings and document production conducted by the Legislature. Not on peril, example of chaos or court of peril resulted from this exhaustive inquiry, which was nothing more than an unnecessary witch-hunt and political theater. It is obvious from these live streaming videos and archived published materials that the Legislature has little, if any, knowledge of the complex and diligent operation of the Kiowa Tribe on a daily basis, nor the daily dedication of the numerous Executive staff employees that make the success of the Kiowa Tribe possible.

The Chairman can select the person of his choice and whom he chooses as the exclusive head of the Executive Branch, then confirmed by the Legislature. He would know his personnel best since he works daily with these dedicated individuals and subordinate employees. The legislature has over stepped its Constitutional authority on this resolution.



12/29/25



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2026-005

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-029
The Executive Succession and Signature Succession Act of 2025.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On December 13, 2025, the Legislature passed a Bill entitled, "The Executive Succession and Signature Succession Act of 2025." (Resolution KL-CY-2025-029); and,

WHEREAS, On December 29th, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-029 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-029 The Executive Succession and Signature Act of 2025.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2026-005 was duly voted and approved upon by the Legislature on January 14, 2026, at a Legislative Order Session II-(2) with a vote of (7) in favor and (0) opposed, (0) abstaining, and (0) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2026-005

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			